

25STCV02040 25STCV02040

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Case Number: 25STCV02040 Hearing Date: August 12, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Motion to Strike or Tax Costs

Defendants' Motion to Strike Plaintiff's

Memorandum of Costs, or alternatively, Tax Costs is denied.

BACKGROUND

Plaintiff Xujie Chang (Plaintiff) filed this action against Volkswagen Group of America, Inc. and Lad-V, LLC dba Volkswagen of Downtown (collectively, Defendants), alleging that Defendants failed to conform the vehicle Plaintiff leased to the applicable express warranty after a reasonable number of repair attempts.

The causes of action are: (1) violation of the Song-Beverly Consumer Warranty Act for breach of express warranty; (2) violation of the Song-Beverly Consumer Warranty Act for breach of implied warranty; (3) violation of Civil Code section 1793.2, subdivision (b); and (4) negligent repair.

Following a settlement, the Court dismissed the Complaint on April 30, 2026, retaining jurisdiction under Code of Civil Procedure section 664.6.

Plaintiff filed a Memorandum of Costs.

Defendants filed a Motion to Strike Plaintiff's Memorandum of Costs, or alternatively, Tax Costs. Plaintiff filed an Opposition.

LEGAL

STANDARD

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) That entitlement operates as a default. “Nothing in this section shall prohibit parties from stipulating to alternative procedures for awarding costs in the litigation pursuant to rules adopted under Section 1034.” (Id., subd. (c).)

A prevailing party claims costs by serving and filing a memorandum of costs. The memorandum “must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700(a)(1).)

Code of Civil Procedure section 1033.5, subdivisions (a) and (b), list the items allowable and not allowable as costs. Subdivision (c)(4) provides: “Items not mentioned in this section and items assessed upon application may be allowed or denied in the court’s discretion.” Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “shall be reasonable in amount.” (Id., subds. (c)(2), (c)(3).)

“If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. ‘On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.’ However, whether a cost item was reasonably necessary is still a question of fact to be decided by the trial court.” (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266 (Jones), quoting Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) A party’s “mere statements in the points and authorities accompanying its notice of motion to strike cost bill and the declaration of its counsel are insufficient to rebut the prima facie showing [that the costs were necessarily incurred].” (Jones, supra, 63 Cal.App.4th at p. 1266, quoting Rappenecker v. Sea-Land Service, Inc. (1979) 93 Cal.App.3d 256, 266.)

ANALYSIS

I. Timeliness

First, Defendants argue that Plaintiff served the Memorandum of Costs three days after the deadline that California Rules of Court, rule 3.1700(a)(1) prescribes, and ask the Court to strike it on that ground. (Mot., p. 3:15-27.)

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Court, rule 3.1700(a)(1).)

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days,” and the statute excepts only a notice of intention to move for new trial, a notice of intention to move to vacate judgment under Code of Civil Procedure section 663a, and a notice of appeal. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) The extension “applies in the absence of a specific exception provided by any other statute or rule of court.” (Id., subd. (a)(3)(C).) The statute defines the service it governs. “Electronic service may be performed directly by a person, including a party, by a person’s agent, including the person’s attorney, or through an electronic filing service provider, and by a court.” (Id., subd. (a)(1)(A).) The clerk’s transmission falls within that definition, so subdivision (a)(3)(B) applies to it directly.

Rule 3.1700 states no exception. Construing the parallel five-day mail extension of Code of Civil Procedure section 1013, subdivision (a), which contains the same proviso, the Court of Appeal held: “No statute or rule of court ‘specifically’ exempts cost memoranda from the five-day mailing extension in section 1013, subdivision (a). Moreover, section 1013, subdivision (a), specifies the items to which the extension does not apply. A memorandum of costs is not among those exceptions.” (Nevis Homes LLC v. CW Roofing, Inc. (2013) 216 Cal.App.4th 353, 357 (Nevis

Homes).) The same opinion rejected the argument that rule 3.1700(b)'s express reference to section 1013, set against rule 3.1700(a)'s silence, reveals a contrary Judicial Council intent. "Regardless of what the Judicial Council may have had in mind when it adopted former rule 870, its intent cannot trump the plain meaning of the statute." (Ibid.)

Here, the Court dismissed the entire action without prejudice on April 30, 2026, by written order. (Park Decl., ¶ 4, Exh. B.) The clerk transmitted the Order of Dismissal itself, under a Clerk's Certificate of Service by Electronic Service, the same day. (Park Decl., Exh. B.) Fifteen days after April 30, 2026 is Friday, May 15, 2026, the date Defendants identify as the deadline. (Mot., p. 3:22-25.) Two court days later is Tuesday, May 19, 2026. Plaintiff filed and served the Memorandum of Costs on May 18, 2026. (Park Decl., ¶ 5, Exh. C.) Accordingly, the Memorandum of Costs was timely filed and served.

II. Filing

Fees

Next, Defendants argue that the \$463.75 claimed at Item 1 reimburses a notice of Change of Address served on or about April 6, 2024, which was not reasonably necessary to the conduct of the litigation, and ask the Court to tax the item in full. (Mot., p. 5:15-23.)

"Filing, motion, and jury fees" are allowable as costs, as are "[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents." (Code Civ. Proc., § 1033.5, subds. (a)(1), (a)(14).)

Here, Item 1 claims \$463.75, itemized in Attachment 1G as five charges: \$440.75 for the Complaint and initiating documents, and \$5.75 each for the proofs of personal service, the summons, the case management statement and notice of posting of jury fees, and the notice of settlement of the entire case. (Memorandum of Costs, Attachment 1G.) Plaintiff served the First Legal invoices with the Memorandum of Costs, and those invoices document each charge and its allocation. (Park Decl., Exh. C.) Invoice reference 17079877 totals \$451.00, comprising a base electronic filing charge of \$10.25, additional charges of \$5.75, and \$435.00 in fees advanced to the court for the filing. (Park Decl., Exh. C, First Legal invoice No. 10954700.)

The \$435.00 is the filing fee on the Complaint, allowable under section 1033.5, subdivision (a)(1).

The balance of \$28.75 consists of five \$5.75 charges, one for each of the five filings. The electronic filing service provider billed each in connection with a filing this court required Plaintiff to make electronically, so each is a fee for the electronic filing of a document through that provider within section 1033.5, subdivision (a)(14). (Super. Ct. L.A. County, Local Rules, rule 3.4(a); Park Decl., Exh. C, First Legal invoice Nos. 10954700, 10990120, 10995556, 11108593, 11248955.) The invoices also show that Plaintiff claimed no charge twice. The \$10.25 base electronic filing charges appear at Item 14, the \$150.00 advanced for jury fees appears at Item 2, and Plaintiff did not claim the \$10.25 charge for the March 17, 2025 summons filing that First Legal records as rejected. (Memorandum of Costs, Attachments 1G, 2E, 14; Park Decl., Exh. C, First Legal invoice No. 10990120.)

Defendants' stated reason for taxing Item 1 concerns a notice of Change of Address served on or about April 6, 2024. (Mot., p. 5:18-20.) No charge for such a document appears in Attachment 1G, in the Memorandum of Costs (Summary), or in the Memorandum of Costs (Worksheet), and the date Defendants give precedes the January 24, 2025 filing of the Complaint. (Memorandum of Costs (Summary), p. 1; Memorandum of Costs (Worksheet), pp. 1-3; Attachment 1G; Park Decl., ¶ 2.) An objection addressed to a charge Plaintiff does not claim gives the Court no reason to tax the charges Plaintiff does claim. The Park Declaration recites the procedural history of the action and addresses no cost item. (Park Decl., ¶¶ 2-5.) The Court declines to tax Item 1.

III. Electronic Filing Fees

Next, Defendants challenge the \$52.00 claimed at Item 14 for the same reasons they give as to Item 1, describing the item as costs associated with the declaration referenced in the Item 1 objection. (Mot., p. 5:24 - p. 6:3.)

Allowable costs include "[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents." (Code Civ. Proc., § 1033.5, subd. (a)(14).) The Los Angeles

Superior Court requires it. "Pursuant to the operative General Order re Mandatory Electronic Filing for Civil ('General Order'), represented parties in civil actions must file documents electronically, unless the court exempts parties from doing so. The electronic filing of documents must be effected using an approved electronic service provider." (Super. Ct. L.A. County, Local Rules, rule 3.4(a).)

Here, Item 14 claims \$52.00, itemized in Attachment 14 as five electronic filing charges corresponding to the same five filings listed in Attachment 1G, at \$10.25 each except for the last, which is \$11.00. (Memorandum of Costs, Attachment 14.) Each claimed amount matches the base electronic filing charge on the corresponding First Legal invoice, and Plaintiff incurred each through an electronic filing service provider. (Park Decl., Exh. C, First Legal invoice Nos. 10954700, 10990120, 10995556, 11108593, 11248955.) Plaintiff is a represented party in a civil action in this court, so electronic filing was required and section 1033.5, subdivision (a)(14) allows the fees. (Memorandum of Costs, p. 1.) No declaration appears among the charges Attachment 14 itemizes. (Memorandum of Costs, Attachment 14.) The objection to Item 14 rests on the objection to Item 1, which fails. The Park Declaration addresses no charge in Attachment 14. (Mot., p. 6:1-3; Park Decl., ¶¶ 2-5.) Item 14 is allowed as claimed.

IV. Appearance

Fee

Next, Defendants argue that the \$75.00 claimed at Item 15 is not allowable under Code of Civil Procedure section 1033.5, subdivision (a), and that the charge is objectionable in any event because Plaintiff's counsel retained outside counsel for an appearance counsel could have made personally. (Mot., p. 6:5-11.)

The objection raises whether a charge for an appearance is attorney fees. Attorney fees are allowable as costs only when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Where a statute authorizes them, the permitted mechanisms include fixing them "upon application supported by affidavit made concurrently with a claim for other costs." (Id., subd. (c)(5)(A).) Item 15 does not claim fees for the time of Plaintiff's counsel of record. It claims a flat charge billed by an appearance service to Plaintiff's counsel for coverage of a single conference. Plaintiff claimed no attorney fees at Item 10, where the form

directs a party to enter fees “if contractual or statutory fees are fixed without necessity of a court determination; otherwise a noticed motion is required.” (Memorandum of Costs (Summary), Items 10, 15; Park Decl., Exh. C, Exh. 1.) A vendor charge of that kind is a litigation expense and not compensation claimed for counsel’s time. Even were the charge treated as a fee, the verified Memorandum of Costs, with the invoice attached, would be an application supported by affidavit made concurrently with a claim for other costs, so the claim would still be properly presented.

Absence from the list in subdivision (a) does not otherwise make the charge unrecoverable. The item is not among those subdivision (b) disallows, and “[i]tems not mentioned in this section and items assessed upon application may be allowed or denied in the court’s discretion.” (Code Civ. Proc., § 1033.5, subd. (c)(4).)

Here, the vendor invoice identifies this case by number and caption, states that a Court Appearance Professionals appearance was made at the Case Management Conference on July 16, 2025, and states a charge of \$75.00. (Park Decl., Exh. C, Attachment 15 and Exh. 1.) The invoice is the evidence that the appearance occurred. Attachment 1G’s charge for filing a case management statement the preceding day shows that the conference was calendared. (Memorandum of Costs, Attachment 1G.) Appearing at a case management conference the Court has set is reasonably necessary to the conduct of the litigation, because someone had to appear for Plaintiff. Whether a cost item was reasonably necessary and reasonable in amount is a question of fact for the Court. (Code Civ. Proc., § 1033.5, subds. (c)(2), (c)(3); Jones, supra, 63 Cal.App.4th at p. 1266.) A single conference appearance billed at a flat \$75.00 is reasonable for the service performed, and Plaintiff has met the burden of proof on Item 15. The \$75.00 claimed at Item 15 is allowed.

CONCLUSION

Defendants’ Motion to Strike Plaintiff’s Memorandum of Costs, or alternatively, Tax Costs is denied.